

## 26STLC00871 26STLC00871

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-03

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Case Number: 26STLC00871 Hearing Date: August 3, 2026 Dept: 26

### TENTATIVE RULING:

Defendant Yaro Bezgubenko's Motion to Set Aside Default is denied.

### Analysis:

On February 9, 2026, Plaintiff Capital Resource International, Inc. ("Plaintiff") filed the instant action against Defendants Power Net Electric, Inc. ("Defendant Power Net") and Yaro Bezgubenko ("Defendant Bezgubenko"). Following Defendants' failure to file a responsive pleading, the Court entered their default on April 22, 2026 and default judgment on June 9, 2026.

Defendant Bezgubenko filed the instant Motion to Set Aside Default on June 12, 2026. At the initial hearing on July 7, 2026, the Court noted that the Motion did not include a proof of service showing it was served on Plaintiff, or that Plaintiff was given notice of the hearing date. The Court continued the hearing to give Defendant an opportunity to file proof of service of the papers and notice of hearing date by July 10, 2026. (Minute Order, 07/07/26.)

On July 7, 2026, Defendant filed a document that perhaps attempts to show proof of service, but fails to do so. The document is titled "Document name (Proof of delivery)" and attaches a pickup and delivery list from a company called "LA Messenger." However, it cannot be determined from the list what documents were delivered, how they were delivered, or by whom, and it is not attested to under penalty of perjury. (See Code Civ. Proc., §§ 1013a, 1013b.) Therefore, the Court cannot find that the Defendant provided Plaintiff

with notice of the instant Motion and new hearing date in a manner that complies with the statutory requirements.

#### Conclusion

Defendant Yaro Bezgubenko's Motion to Set Aside Default is denied.

Judicial Assistant to give notice.